

HOUSE No. 2054

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher J. Worrell

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to end mandatory life without the possibility of parole for the age of 21-25 and 364 days.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>1/14/2025</i>

HOUSE No. 2054

By Representative Worrell of Boston, a petition (accompanied by bill, House, No. 2054) of Christopher J. Worrell for legislation to end mandatory life without the possibility of parole for certain young adults. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end mandatory life without the possibility of parole for the age of 21-25 and 364 days.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Whereas modern scientific research on brain development, including
2 studies on the Prefrontal Cortex and Striatum, has established that cognitive maturation
3 continues through early adulthood. Young adults aged 21-25 years and 364 days demonstrate
4 incomplete development of impulse control and risk assessment.

5 Whereas scientific advancements have identified distinct stages of brain maturation,
6 including Early Adolescents (12 and under), Middle Adolescents (13-17), Late Adolescents (18-
7 20), and Young Adults (21-25). The Striatum, which governs gratification, remains heightened
8 into Young Adulthood.

9 Whereas evolving standards of decency dictate that the criminal justice system must take
10 into account contemporary understandings of adolescent and young adult brain development.

11 Whereas research by Harvard University (2021) and Boston University's Center for Anti-
12 Racism (2023-24) has found that individuals of color in Massachusetts face disproportionately

13 harsher treatment by the criminal justice system. Disparities in sentencing and plea deals result in
14 non-white defendants receiving harsher sentences at 16 times the rate of their white counterparts.

15 Whereas economic and class disparities further exacerbate injustices in sentencing.
16 Financial constraints limit access to adequate legal representation, underprivileged schools
17 contribute to high incarceration rates among individuals lacking high school diplomas, and
18 inadequate healthcare access negatively impacts mental and physical well-being.

19 Whereas mandatory life without parole for first-degree murder fails to account for the
20 ongoing cognitive development of individuals aged 21-25 years and 364 days. Such sentences
21 violate the Eighth Amendment's prohibition against cruel and unusual punishment.

22 Whereas Supreme Court decisions, including *Roper v. Simmons* (2005), *Graham v.*
23 *Florida* (2010), *Miller v. Alabama* (2012), and *Montgomery v. Louisiana* (2016), have
24 established jurisprudence recognizing the developmental differences of young offenders and the
25 necessity of retroactive application of sentencing reforms.

26 Whereas scientific studies on adverse childhood experiences (ACES) demonstrate the
27 long-term impact of trauma on cognitive and emotional development. Research links early-life
28 exposure to violence, deprivation, and poverty to delayed brain maturation and increased risk-
29 taking behavior.

30 Whereas contemporary psychological models and neuroscientific research affirm that
31 exposure to threat and deprivation in early life significantly affects the development of brain
32 systems responsible for executive function, impulse control, and decision-making.

Whereas research by Eveline Crone and Nikolaus Steinbeis (2017) establishes that cognitive abilities related to self-regulation continue to mature during adolescence and early adulthood.

Whereas studies by Christopher Holmes et al. (2020) demonstrate that older individuals (ages 25-31) are more likely to simultaneously activate both the Striatum and Prefrontal Cortex. This activation is associated with a decreased tendency to prefer immediate rewards.

Whereas studies by Rhoshel Lenroot et al. (2007) show that grey matter volume in the brain thins during adolescence and continues to thin into young adulthood. The Prefrontal Cortex, in particular, shows a 17% reduction in grey matter volume between ages 6-26.

Whereas Kathryn Mills et al. (2014) have found a developmental mismatch in structural brain maturation, indicating that stress significantly impairs decision-making, particularly in late adolescents and young adults.

Whereas a meta-analytic review by Sherecca Fields et al. (2014) has demonstrated that acute stress negatively impacts future-oriented decision-making. This effect is heightened in young adults.

Whereas a recent study by Jessica Uy and Adriana Galvan (2020) found that the extent of structural connectivity between the Prefrontal Cortex and the Striatum is linked to risky decision-making under stress in adolescents and adults.

SECTION 2. Any individual who, at the time of the commission of the offense, was between the ages of twenty-one years and twenty-five years and three hundred sixty-four days, and who has been sentenced to life imprisonment without the possibility of parole, shall be

54 eligible for parole review. This provision shall apply retroactively to all individuals currently
55 serving such sentences, as well as prospectively to future sentencing determinations.

56 SECTION 3. A charge of Felony Murder will result in a minimum term of 20 years with
57 the possibility of parole. Premeditated Murder requires a minimum term of 25 years with the
58 possibility of parole. Extreme Cruelty or Atrocity requires a minimum term of 30 years with the
59 possibility of parole. Other First-Degree Murder Convictions require a minimum term of 20
60 years with the possibility of parole.

61 SECTION 4. Mittimus Restructuring: Courts shall restructure sentences without requiring
62 resentencing hearings. The Massachusetts Department of Corrections shall gather Mittimuses
63 within 90 days and submit them to county Clerks for restructuring. County Clerks shall have 90
64 days to modify and return Mittimuses to the Department of Corrections.

65 SECTION 5. Restorative Justice & Rehabilitation: Parolees must attend therapy or
66 counseling. Parole officers shall ensure compliance. Therapy will address harm, trauma, impact,
67 healing, and accountability. The cost of incarceration, ranging from \$117,000 to \$150,000 per
68 year, should be redirected towards rehabilitation. Lifer parolees contribute positively to
69 communities, reducing recidivism and societal burdens.